---------- **Instance Type and Transmission** ----------

Copy
Priority/Delivery : Normal

---------- **Message Header** ----------

Swift Input : FIN 700 Issue of a Documentary Credit
Sender : EXTHTHBKXXX
EXPORT-IMPORT BANK OF THAILAND
BANGKOK TH
Receiver : CITIHKHXXXX
CITIBANK N.A.
HONG KONG HK

---------- **Message Text** ----------

27: Sequence of Total
1/2
40A: Form of Documentary Credit
IRREVOCABLE
20: Documentary Credit Number
EXIM0600014/2026
31C: Date of Issue
260212
40E: Applicable Rules
UCP LATEST VERSION
31D: Date and Place of Expiry
260321IN HONG KONG.
50: Applicant
ASIA GREEN ENERGY PUBLIC COMPANY
LIMITED.,99/9 RAMA 2 ROAD,SAMAEDAM,
BANGKHUNTHIAN,BANGKOK 10150
THAILAND
59: Beneficiary - Name & Address
SAII RESOURCES PTE LTD
40A ORCHARD ROAD,MACDONALD HOUSE
NO.03-01 SINGAPORE 238838
32B: Currency Code, Amount
Currency : USD (US DOLLAR)
Amount : #1,895,850.#
39A: Percentage Credit Amt Tolerance
10/10
41D: Available With...By... - Name&Addr
ANY BANK IN HONG KONG AND/OR
CONFIRMING BANK.
BY NEGOTIATION
42C: Drafts at...
SIGHT.
42D: Drawee - Name & Address
ISSUING BANK AND/OR CONFIRMING
BANK.
43P: Partial Shipments
NOT ALLOWED
43T: Transhipment
NOT ALLOWED
44E: Port of Loading/Airport of Dep.
PEUNAGA ANCHORAGE, ACEH PROVINCE, INDONESIA.
44F: Port of Discharge/Airport of Dest
KOH SICHANG, THAILAND.
44C: Latest Date of Shipment
260228
45A: Description of Goods and/or Services
55,000 MTS OF INDONESIAN STEAM COAL IN BULK
(+/-10%) BASIS GROSS CALORIFIC VALUE 3,400 KCAL/KG (ARB)
BASE UNIT PRICE USD34.47 PER MT
PRICE TERM FOB PEUNAGA ANCHORAGE, ACEH PROVINCE, INDONESIA.
.
COAL SPECIFICATIONS UNDER ASTM STANDARD

PARAMETER(ASTM)	TYPICAL	REJECTION
TOTAL MOISTURE(ARB)	45% APPROX.	NO REJECTION
ASH(ADB)	8%	ABOVE 10%
INHERENT MOISTURE(ADB)	15% APPROX.	NO REJECTION
VOLATILE MATTER(ADB)	42 APPROX.	NO REJECTION
SULPHUR(ADB)	0.3%	ABOVE 0.5%
GROSS CALORIFIC VALUE(ARB)	3,400 KCAL/KG	BELOW 3,200 KCAL/KG
FIXED CARBON(ADB)	BY DIFFERENCE	NO REJECTION
HGI	42 APPROX.	NO REJECTION
SIZE(0-200MM)CRUSHED	90% APPROX.	NO REJECTION

46A: Documents Required
+1)COMMERCIAL INVOICE FOR THE COAL IN 1 ORIGINAL AND 2 COPIES PRICE FOB PEUNAGA ANCHORAGE, ACEH PROVINCE, INDONESIA, SIGNED BY THE SELLER, DETAILING THE QUANTITY OF COAL SHIPPED, THE INVOICE PRICE OF COAL, TOTAL AMOUNT DUE, THE NAME OF THE VESSEL, QUANTITY/WEIGHT, L/C NUMBER, COUNTRY OF ORIGIN, THE NUMBER AND DATE OF THE BILL OF LADING, DETAIL OF CALCULATION, THE ACTUAL CALORIFIC VALUE RESULTS AND PRICE ADJUSTMENTS (IF ANY).
+2)FULL SET B/L OF 3 ORIGINALS PLUS 3 NON-NEGOTIABLE COPIES OF CLEAN ON BOARD CHARTER PARTY BILLS OF LADING MADE OUT TO THE ORDER AND ENDORSED TO THE ORDER OF EXPORT-IMPORT BANK OF THAILAND, MARKED "FREIGHT PAYABLE AS PER CHARTER PARTY" AND NOTIFY APPLICANT.
+3)CERTIFICATE OF ANALYSIS ISSUED BY PT.GEOSERVICES IN 1 ORIGINAL AND 2 COPIES.
+4)CERTIFICATE OF WEIGHT ISSUED BY PT.GEOSERVICES IN 1 ORIGINAL AND 2 COPIES.
+5)DRAFT SURVEY REPORT ISSUED BY PT.GEOSERVICES IN 1 ORIGINAL AND 2 COPIES.
+6)CERTIFICATE OF ORIGIN ISSUED BY PT.GEOSERVICES IN 1 ORIGINAL AND 2 COPIES.
+7)CERTIFICATE OF HOLD CLEANLINESS ISSUED BY PT.GEOSERVICES IN 1 ORIGINAL AND 2 COPIES.
+8)BENEFICIARY'S CERTIFICATE STATING THAT ALL DOCUMENTS HAVE BEEN FAXED OR E-MAILED TO THE APPLICANT FOR REVIEW WITHIN FIVE WORKING DAYS AFTER THE BILL OF LADING DATE.

47A: Additional Conditions
+1)PRICE ADJUSTMENT:

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IF THE ACTUAL CALORIFIC VALUE OF 3,400 GAR COAL DIFFERS FROM 3,400 KCAL/KG(GAR), BEING EQUAL TO OR LESS THAN 3,550 KCAL/KG BUT NOT LESS THAN 3,200 KCAL/KG (GAR), THEN THE PRICE ADJUSTMENT TO THE BASE PRICE OF 3,400 GAR COAL SHALL BE CALCULATED BY APPLYING TO THE FOLLOWING FORMULA:

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$$\text{ADJUSTMENT PRICE} = \frac{\text{BASE PRICE X ACTUAL CV(GAR)}}{\text{3,400 KCAL/KG (GAR)}}$$

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IF THE ACTUAL GROSS CALORIFIC VALUE (ARB) MORE THAN GROSS CALORIFIC VALUE (ARB) 3,550 KCAL/KG. IT WILL BE TREATED AS GROSS CALORIFIC VALUE (ARB) 3,550 KCAL/KG ONLY.

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REJECTION:
THE BUYER RESERVES THE RIGHT TO REJECT THE COAL CARGO IN CASE ANY OF THE FOLLOWING LIMITS ARE REACHED: SULPHUR (AIR DRIED BASIS): ABOVE 0.50%, GROSS CALORIFIC VALUE (ARB): BELOW 3,200 KCAL/KG AND/OR ASH (ADB): ABOVE 10%
+2)10% MORE OR LESS IN QUANTITY AND AMOUNT ACCEPTABLE.
+3)CHARTER PARTY BILL OF LADING IS ACCEPTABLE.
+4)THIRD PARTY DOCUMENTS EXCEPT COMMERCIAL INVOICE AND DRAFT (IF ANY) ARE ACCEPTABLE.
+5)DOCUMENTS ISSUED EARLIER THAN THE L/C ISSUING DATE ARE UNACCEPTABLE.

+6)THE L/C IS ALLOWED TO OVERDRAWN OR UNDERDRAWN DUE TO PRICE ADJUSTMENT RELATED TO QUALITY RESULT, HOWEVER, ALWAYS BELOW OR EQUAL TO THE MAXIMAL OF L/C AMOUNT.
+7)TYPOGRAPHICAL ERRORS OR SPELLING MISTAKES WHICH DO NOT CHANGE THE MEANING OF WORDS SHALL NOT BE CONSIDERED AS DISCREPANCIES, EXCEPT FOR QUANTITY, AMOUNT AND DATE.
+8)THE TOTAL AMOUNT OF THE INVOICE SHALL BE CALCULATED TO THE NEAREST CENTS.
+9)UNDERDRAWN OR OVERDRAWN DUE TO QUALITY ADJUSTMENT IS ACCEPTABLE BUT NOT OVER USD2,085,435.00
+10)DOCUMENTS SHOWS ACTUAL ANALYSIS RESULTS EXCEEDING OR BELOW COAL SPECIFICATIONS BUT WITHIN THE REJECTION LIMIT IN THIS L/C IS ACCPETABLE.
+11)CERTIFICATE OF ANALYSIS, CERTIFICATE OF WEIGHT, DRAFT SURVEY REPORT AND ADDITIONAL CERTIFICATE OF ANALYSIS ARE ISSUED BY THE SURVEYOR AT LOADING PORT PRESENTED BY BENEFICIARY IS ACCEPTABLE.
+12)'ISO' EQUALS TO 'INTERNATIONAL ORGANIZATION FOR STANDARDIZATION', 'ASTM' EQUALS 'AMERICAN SOCIETY OF TESTING AND MATERIALS', 'ARB' MEANS 'AS RECEIVED BASIS', 'ADB' MEANS 'AIR DRIED BASIS', 'HGI' MEANS 'HARDGROVE GRINDABILITY INDEX' OR 'HARD GROVE INDEX', 'GCV' MEANS 'GROSS CALORIFIC VALUE', 'METRIC TON' MEANS 'METRIC TONS' OR 'MT' OR 'MTS' OR 'M/TONS' OR 'TNE' OR 'TNE(S)', 'TOTAL SULPHUR' MEANS 'SULPHUR' OR 'TOTAL SULFUR' OR 'SULFUR', 'ASH CONTENT' MEANS 'ASH', 'TOTAL MOISTURE' MEANS 'TM', 'THE WORD PERCENT' MEANS 'PCT' OR 'PERCENT SYMBOL', 'SIZE' MEANS 'SIZE DISTRIBUTION' OR 'SIZING', 'PMT' MEANS 'PER METRIC TON', 'BILL OF LADING' MEANS 'BILL(S) OF LADING' OR 'B/L', 'AT LOAD PORT' MEANS 'AT LOADING PORT' OR 'AT PORT OF LOADING' OR 'AT THE LOAD PORT' OR 'AT THE LOADING PORT, 'DISCHARGING PORT' EQUAL 'DISCHARGE PORT' EQUAL 'PORT OF DISCHARGE' EQUAL 'PORT OF DISCHARGING', 'HEX' MEANS 'HEX NUMBER' OR 'NO.', 'NAR' MEANS 'NET CALORIFIC VALUE (AS RECEIVED BASIS)', 'GAR' MEANS 'GROSS CALORIFIC VALUE (AS RECEIVED BASIS)', 'CERTIFICATE OF QUALITY' EQUALS 'CERTIFICATE OF SAMPLING AND ANALYSIS' EQUALS 'CERTIFICATE OF ANALYSIS', 'DRAFT SURVEY REPORT' EQUALS 'CERTIFICATE OF DRAFT SURVEY' EQUALS 'DRAFT SURVEYOR REPORT'.
+13)CERTIFICATE OF SAMPLING AND ANALYSIS ISSUED BY PT.GEOSERVICES AT LOADING PORT IN THEIR STANDARD FORMAT ALSO SHOWING ACTUAL ANALYSIS RESULTS FOR MANY OTHER PARAMETERS ARE ACCEPTABLE.
+14)THE TOTAL AMOUNT AND BASE PRICE AFTER ADJUSTMENT OF THE INVOICE SHALL BE ROUNDED TO THE NEAREST US CENTS. THE WEIGHT SHALL BE ROUNDED TO THE NEAREST METRIC TON.
+15)AN ADDITIONAL COPY OF ALL REQUIRED DOCUMENTS MUST BE PRESENTED FOR OUR FILING PURPOSE. OTHERWISE, A MINIMUM OF USD10.00 WILL BE CHARGED.
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TO BE CONTINUED ON MT701

71D: Charges
ALL BANK CHARGES OUTSIDE THAILAND
INCLUDING CONFIRM CHGS.(IF ANY)
ARE FOR THE BENEFICIARY'S ACCOUNT.

48: Period for Presentation in Days
21

49: Confirmation Instructions
MAY ADD

58A: Requested Confirmation Party - FI BIC
HFLIHKHH
HABIB BANK ZURICH (HONG KONG) LIMITED
HONG KONG HK

78: Instr to Payg/Accptg/Negotg Bank
+THE NEGOTIATING BANK MUST FORWARD ALL DOCUMENTS IN 1 LOT TO EXPORT-IMPORT BANK OF THAILAND, RAMA 2 BRANCH, 174/112-113, MOO 6 SOI RAMA 2 ROAD, SAMAEDUM,BANGKHUNTHIAN, BANGKOK 10150, THAILAND. ATTN:D AND B DIVISION.

+THE AMOUNT OF EACH DRAFT MUST BE ENDORSED ON THE REVERSE OF
THIS CREDIT BY THE NEGOTIATING BANK.
+UPON RECEIPT OF CREDIT CONFORMED DOCUMENTS, WE SHALL REMIT THE
PROCEEDS AS PER THE NEGOTIATING BANK'S INSTRUCTION.
+A MINIMUM OF USD50.00 WILL BE DEDUCTED FROM PROCEEDS IF
DOCUMENTS PRESENTED WITH DISCREPANCIES. OUR HANDLING FEE AND
SWIFT CHARGES WILL BE DEDUCTED FROM THE PROCEEDS UPON THE PAYMENT

57D: 'Advise Through' Bank -Name&Addr
/12-01-02-20622-333-176752
HABIB BANK ZURICH (HONG KONG)
LIMITED., SUITE 1220,LIPPO SUN
PLAZA, 28 CANTON ROAD,TSIM SHA
TSUI, HONG KONG (HFLIHKHHXXX)

72Z: Sender to Receiver Information
+PLS ACKNOWLEDGE RECEIPT OF L/C.

EXIM THAILAND

---------- **Instance Type and Transmission** ----------

Copy
Priority/Delivery : Normal

---------- **Message Header** ----------

Swift Input : FIN 701 Issue of a Documentary Credit
Sender : EXTHTHBKXXX
EXPORT-IMPORT BANK OF THAILAND
BANGKOK TH
Receiver : CITIHKHXXX
CITIBANK N.A.
HONG KONG HK

---------- **Message Text** ----------

27: Sequence of Total
2/2
20: Documentary Credit Number
EXIM0600014/2026
47A: Additional Conditions
+16)NOTWITHSTANDING ANYTHING TO THE CONTRARY IN THE APPLICABLE ICC RULES OR IN THIS UNDERSTANDING, WE HAVE THE RIGHT TO SUSPEND THE PAYMENT UNDER L/C DURING THE TIME THAT WE ARE IN PROCESS OF EXAMINING OR INVESTIGATION WHETHER OR NOT THE PAYMENT UNDER L/C MAY CAUSE US TO BREACH ANY SANCTION, PROHIBITION OR RESTRICTION UNDER THE UNITED NATIONS RESOLUTIONS OR THE TRADE OR ECONOMIC SANCTIONS, LAWS OR REGULATIONS OF EUROPEAN UNION, THE UNITED KINGDOM, THE UNITED STATES OF AMERICA OR ANY OTHER SANCTION AUTHORITY. WE MAY NOT RETURN DOCUMENTS, NOT MAKE PAYMENT UNDER L/C AND/OR DO ANYTHING IN CASE THE RELEVANT TRANSACTION MAY CAUSE US TO BREACH ANY SANCTION, PROHIBITION OR RESTRICTION UNDER THE UNITED NATIONS RESOLUTIONS OR THE TRADE OR ECONOMIC SANCTIONS, LAWS OR REGULATIONS OF EUROPEAN UNION, THE UNITED KINGDOM, THE UNITED STATES OF AMERICA OR ANY OTHER SANCTION AUTHORITY.
+17)PRESENTING BANK MUST CONFIRM IN THEIR COVERING SCHEDULE THAT ALL ADVISING BANK CHARGES HAVE BEEN PAID.
+18)IN THE EVENT THAT DOCUMENTS PRESENTED HEREUNDER ARE DETERMINED TO BE DISCREPANCY. IN CASE, THE BENEFICIARY REQUEST TO REVISE DOCUMENTS/ADDITIONAL DOCUMENTS TO US, THERE IS STILL A DISCREPANCIES CHARGES. WE MAY SEEK A WAIVER OF SUCH DISCREPANCIES FROM THE APPLICANT. THEREFORE, THE DECISION TO WAIVE SUCH DISCREPANCIES WILL BE ON THE APPLICANT.
+19)HABIB BANK ZURICH (HONG KONG) LIMITED, HONG KONG MAY ADD CONFIRMATION TO THIS L/C UPON BENEFICIARY'S REQUEST, AFTER ADDING CONFIRMATION, KINDLY ADVISE US TO UPDATE OUR RECORDS ACCORDINGLY THEN L/C NEGOTIATION IS RESTRICTED TO THE CONFIRMING BANK AND THE DRAWEE OF THE DRAFT IS THE CONFIRMING BANK.